

Software License and Support Agreement

Contract ID: CTR-2026-0071 Supplier: Larkspur Analytics Inc. Tax ID: 88-4471029 Contract Owner: H. Talbi, Procurement Total Contract Value: \$142,800 USD Contract Validity Period: 2026-03-15 to 2027-03-14 Vendor Risk Tier: Tier 2 — High (per POL-VRM-005)

1. License Grant

Larkspur Analytics Inc. grants the Company a non-exclusive, non-transferable license to use the Larkspur Insights Platform for up to 250 named users across the Company's Finance and Operations departments, for the duration of this Agreement.

2. Fees

Annual license fee: \$120,000, invoiced upfront upon execution. Annual support and maintenance fee: \$22,800 (19% of license fee), invoiced upfront alongside the license fee. Total first-year contract value: \$142,800.

3. Support Terms

Vendor shall provide Business Hours support (8am-6pm ET, Monday-Friday) with a 4-hour response time for Severity 1 issues and 1-business-day response for Severity 2 and below. Vendor shall provide quarterly platform updates and shall notify the Company at least 30 days in advance of any update requiring user retraining.

4. Data Privacy and Confidentiality

As the platform will process Company financial and operational data classified as Confidential, Vendor shall: restrict data use solely to providing the licensed services; retain Company data only for the duration of the Agreement plus 30 days for transition purposes; notify the Company of any breach within 72 hours of discovery; comply with applicable data protection regulations; and permit the Company to audit data handling practices with 15 days notice, consistent with Vendor's Tier 2 status under POL-VRM-005.

5. Service Level Commitment

Vendor commits to 99.5% platform uptime measured monthly, excluding scheduled maintenance windows communicated at least 5 business days in advance. Failure to meet this commitment in any given month entitles the Company to a service credit of 5% of the monthly-equivalent license fee per 0.5% of uptime shortfall, up to a maximum of 25% credit in any month.

6. Termination

Either party may terminate for convenience with 60 days written notice. Either party may terminate for cause with 15 days written notice and an opportunity to cure. Upon termination, the Company shall receive a pro-rated refund of any prepaid, unused license fees.

7. Liability and Indemnification

Vendor shall indemnify the Company against third-party claims arising from intellectual property infringement related to the licensed platform. Aggregate liability under this Agreement is capped at total fees paid in the preceding 12 months, except for breaches of Section 4 (Data Privacy).

8. Governing Law

This Agreement shall be governed by the laws of the state in which the Company's headquarters is located.

Approval

Approved by: H. Talbi, Director of Procurement Date: 2026-03-10